

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 COMMITTEE SUBSTITUTE
5 FOR
6 HOUSE BILL NO. 1746

By: Lawson and **Moore**

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8 COMMITTEE SUBSTITUTE

9 An Act relating to children; defining terms;
10 authorizing a facility to prepare and transmit a
11 safety plan to the Office of Juvenile Affairs when
12 certain determination is made; providing what shall
13 be included in a safety plan; directing the Office to
14 approve or deny the safety plan within certain time
15 period; providing when time period begins;
16 authorizing a facility to transmit a safety plan at
17 any time; providing methods by which a safety plan
18 may be transmitted; directing the facility to retain
19 proof of transmission; providing that the safety plan
20 shall be deemed approved if the Office does not
21 provide written approval or denial within certain
22 time period; requiring a denial to state specific
23 reasons for denial; providing that nothing shall be
24 construed to authorize certain isolation or reduced
 access to services; directing the facility to
 maintain the safety plan and supporting
 documentation; providing for codification; and
 providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

1 SECTION 1. NEW A new section of law to be codified in
2 the Oklahoma Statutes as Section 2-3-106 of Title 10A, unless there
3 is created a duplication in numbering, reads as follows:

4 A. As used in this section:

5 1. "Facility" means a juvenile detention facility used for
6 secure detention pursuant to this article;

7 2. "High-risk juvenile" means a juvenile in secure detention
8 who, based on a documented incident or credible information,
9 presents an imminent risk of serious physical harm to:

10 a. the juvenile,

11 b. another confined juvenile,

12 c. facility employees or contractors, or

13 d. the public;

14 3. "Safety plan" means a written, individualized plan to
15 address the imminent safety risk posed by a high-risk juvenile
16 through time-limited interventions and stepdown criteria, while
17 maintaining access to essential services and due process
18 protections; and

19 4. "Time of transmission" means the date and time a facility
20 transmits a safety plan to the Office of Juvenile Affairs using one
21 or more methods authorized in subsection D of this section.

22 B. When a facility determines that a juvenile is a high-risk
23 juvenile, the facility may prepare and transmit a safety plan to the
24 Office of Juvenile Affairs for review pursuant to this section.

1 C. A safety plan transmitted under this section shall include,
2 at a minimum:

3 1. A summary of the triggering incident or conduct and the
4 basis for the determination by the facility that the juvenile meets
5 the definition of a high-risk juvenile;

6 2. A mental health screening or evaluation, or documentation of
7 steps taken to obtain such screening or evaluation as soon as
8 practicable;

9 3. Facility incident reports and related documentation
10 supporting the determination, including use-of-force, restraint,
11 injury, or medical documentation if applicable;

12 4. The relevant disciplinary history or prior incident reports
13 of the juvenile; and

14 5. A confinement and management plan that addresses, as
15 applicable:

- 16 a. hygiene and shower access,
- 17 b. meal service and food delivery procedures,
- 18 c. education services and delivery method,
- 19 d. visitation parameters,
- 20 e. telephone access parameters,
- 21 f. recreation and out-of-room opportunities as safety
- 22 permits,
- 23 g. daily administrative review,
- 24

- h. daily mental health check-in or review when clinically indicated,
- i. a stepdown plan with measurable goals and criteria for return to regular programming, and
- j. staged restoration of privileges tied to the stepdown plan.

D. 1. The Office of Juvenile Affairs shall approve or deny a safety plan in writing within twenty-four (24) hours after the time of transmission by the facility.

2. The twenty-four-hour period begins at the time of transmission and is not dependent upon acknowledgement, confirmation, or acceptance by the Office.

3. A facility may transmit a safety plan at any time, including outside normal business hours, by any of the following methods:

- a. electronic mail to any electronic mail address publicly listed by the Office for general communications or detention-related communications,
- b. facsimile to any facsimile number publicly listed by the Office for general communications,
- c. upload to a state-operated electronic portal used by the Office for receipt of facility submissions, if available, or
- d. personal delivery or commercial carrier delivery to the Office.

1 4. The facility shall retain proof of transmission, which may
2 include a timestamped sent email, facsimile transmission
3 confirmation, portal upload confirmation, or delivery confirmation.

4 5. If the Office does not provide a written approval or denial
5 within the twenty-four-hour period, the safety plan shall be deemed
6 approved by operation of law and the facility may implement the
7 safety plan immediately.

8 6. A denial shall state the specific reasons for denial and, if
9 applicable, identify revisions that would permit approval.

10 E. 1. Nothing in this section shall be construed to authorize
11 punishment-based isolation or to reduce access to essential services
12 except to the extent necessary to address the documented safety
13 risk.

14 2. A safety plan implemented under this section shall be
15 administered in a manner consistent with standards for juvenile
16 detention facilities promulgated by the Board of Juvenile Affairs
17 and other applicable law.

18 3. Approval or deemed approval under this section does not
19 limit the authority of the Office of Juvenile Affairs to monitor,
20 inspect, or enforce standards applicable to juvenile detention
21 facilities, including requiring corrective action prospectively.

22 F. The facility shall maintain the safety plan and supporting
23 documentation required by subsection C of this section and make such
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1 records available to the Office of Juvenile Affairs upon request for
2 oversight and compliance purposes.

3 SECTION 2. This act shall become effective November 1, 2026.
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5 COMMITTEE REPORT BY: COMMITTEE ON RULES, dated 03/09/2026 - DO PASS,
6 As Amended and Coauthored.
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